

The U.P. Food and Civil Supplies (Supply Branch) Ministerial Service Rules, 1979

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[The U.P. Food and Civil Supplies \(Supply Branch\) Ministerial Service Rules, 1979](#)

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[Part I ? General](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[These rules may be called the Uttar Pradesh Food and Civil Supplies \(Supply Branch\) Ministerial Service Rules, 1979.](#)

[\(2\)](#)

They shall come into force at once.

2.

Status.

- The Food and Civil Supplies (Supply Branch) Ministerial Service comprises Group 'C' posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in subject or context-

(i)

"appointing authority" means the District Magistrate of the District;

(ii)

"citizen of India" means a person who is or is deemed to be a citizen of India under Part II of the Constitution;

(iii)

"Constitution" means the Constitution of India;

(iv)

"Food Commissioner" means the Commissioner, Food and Civil Supplies, Uttar Pradesh;

(v)

"Government" means the Government of Uttar Pradesh;

(vi)

"Governor" means the Governor of Uttar Pradesh;

(vii)

"member of service" means a person appointed in a substantive capacity under the provisions of the service rules or of the rules or orders in force prior to the commencement of these rules, to a post in the cadre of the service;

(viii)

"service" means the Uttar Pradesh Food and Civil Supplies (Supply Branch) Ministerial Service; and

(ix)

"year of recruitment" means the period of twelve months commencing from the first day of July of a calendar year.

Part II ? Cadre

4.

Cadre of service.

(1)

The strength of the service and of each category of posts therein shall be such as may be determined by the Governor from time to time.

(2)

The strength of the service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1), be as given below :

Post

Permanent

Temporary

Total

1

2

3

4

1.

Clerk-Cum-Typist

373

919

1292

2.

Senior Accounts Clerks

70

60

130

3.

Head Clerk

55

71

126

4.

Accountant

13

13

26

5.

Stenographer (ordinary Grade 10 per cent of the posts of

Stenographers are in Selection Grade).

57

16

73

Provided that--

(a)

,the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post without thereby entitling any person to compensation; and

(b)

the Governor may create such additional, permanent or temporary posts from time to time as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the various categories ,of posts in the Service shall be made from the following sources :

(1)

Clerk-Cum-Typists.-

(i)

by direct recruitment in accordance with the provisions of the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975, and

(ii)

by promotion of Group 'D' employees to the extent of 10 per cent of the vacancies in accordance with the proviso to Rule 7 of the Subordinate Officers Ministerial Staff (Direct Recruitment) Rules, 1975.

(2)

Senior Accounts Clerks-

By promotion on the basis of seniority subject to the rejection of the unfit from amongst permanent Clerks-cum-Typists of the concerned Division.

(3)

Head Clerks

By promotion on the basis of seniority subject to the rejection of the unfit from amongst the permanent Senior Accounts Clerks of the concerned Division:

Provided that if in any particular year sufficient number of permanent Senior Accounts Clerks are not available for promotion,

the field of eligibility may be extended to include
Clerks-cum-Typists who have put in five years continuous service
on that post.

(4)

Accountants

(5)

Stenographer (Ordinary Grade)

By the direct recruitment.

(6)

Stenographer (Selection Grade)

By promotion on the basis of seniority subject to the
rejection of the unfit from amongst permanent Stenographers
(ordinary grade).

6.

Reservation for Scheduled Castes and other categories.

- Reservation for candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the orders of the Government in force at the time of the recruitment.

Part IV ? Qualifications

7.

Nationality.

- A candidate for direct recruitment to the service must be-

(a)

a citizen of India; or

(b)

a Tibetan refugee who came over to India before the 1st January, 1962 with the intention of permanently settling in India; or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Ceylon or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India :

Provided that a candidate belonging to category 'B' or 'C' above, must be a person in whose favour a certificate of eligibility has been issued by the State Government :

Provided further that a candidate belonging to category 'B' will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh :

Provided also that if a candidate belongs to category 'C' above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond the period of one year shall be subject to his acquiring Indian citizenship.

Note.-A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused may be admitted to an examination or interview and he may also be provisionally appointed subject to necessary certificate being obtained by him or issued in his favour.

8.

Academic qualifications for direct recruitment.

(1)

A candidate for direct recruitment to the post of Clerk-cum-Typists must have the qualifications prescribed in the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975, and possess a speed of at least 25 words per minute in Hindi Typewriting.

(2)

A candidate for the post of Stenographer (Ordinary Grade) must have passed the Intermediate examination of the Board of High School and Intermediate Education, Uttar Pradesh, or an examination recognised by the Government as equivalent thereto and must have a good working knowledge of Hindi written in Devnagri Script. He must also possess a speed of at least 80 words per minute in Hindi Shorthand and 30 words per minute in Hindi Typewriting.

9.

Preferential qualifications.

- A candidate-

(i)

who has served in the Territorial Army for a minimum period of two years, or

(ii)

has obtained 'B' certificate of the National Cadet Corps, and

(iii)

in case of Stenographer, has knowledge of English Shorthand and English Typewriting, shall, other things being equal, be given preference over other candidates in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment-

(i)

to the post of Clerk-cum-Typist must be within the age-limits prescribed in the Subordinate Officers Ministerial Staff (Direct Recruitment), Rules, 1975, and

(ii)

to the post of Stenographer must have attained the age of 21 years and must not have attained the age of more than 27 years on the first day of January of the year in which recruitment is to be made, if the posts are advertised during the period from January 1 to June 30 and on the first day July if the posts are advertised during the period from July 1 to December 31 :

Provided that the upper age limit in the case of candidates belonging to the Scheduled Castes, Scheduled Tribes and such other categories as may be notified by the Government from time to time shall be greater by such number of years as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note.-Persons dismissed by the Union Government or a State Government or by a local Authority or by a body or Corporation or Undertaking, owned or controlled by the Union Government or a State Government shall be ineligible for appointment to any post in the service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital Status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a wife living shall not be eligible for appointment to any post in the service :

Provided that the Governor may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment, he shall be required to produce a medical certificate of fitness in accordance with the rules framed under Fundamental Rule 10 and contained in Chapter III of the Financial Hand Book, Volume II, Part III :

Provided that a medical certificate of fitness shall not be required from a candidate recruited by promotion.

Part V ? Procedure for Recruitment

14.

Determination of vacancies.

- The Food Commissioner shall determine the number of vacancies in the various categories of posts which are required to be filled during the course of the year as also the number of vacancies to be reserved for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories under Rule 6. He shall intimate the vacancies of the particular district to the concerned appointing authority specifying the vacancies, if any, to be reserved as aforesaid. The

appointing authority shall notify the vacancies in the posts of Clerk-cum-Typist to the Secretary of the District Selection Committee and the vacancies in the post of Stenographer to the Employment Exchange in accordance with the rules and orders for the time being in force.

15.

Procedure for direct recruitment to the post of Clerk-cum-Typist.

- Recruitment to the post of Clerk-cum-Typist shall be made through the concerned District Selection Committee in accordance with the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975 as amended from time to time.

16.

Procedure for direct recruitment to the post of Stenographer (Ordinary Grade).

(1)

For the purpose of recruitment to the post of Stenographer (Ordinary Grade) there shall be constituted a Selection Committee comprising :

(i)

District Magistrate of the concerned District or an officer not below the rank of Deputy Collector nominated by him;

(ii)

District Supply Officer;

(iii)

Deputy Collector to be nominated by the District Magistrate.

(2)

The Selection Committee shall scrutinize the applications and require the eligible candidates to appear in a competitive examination.

(3)

After the marks obtained by the candidates in the written test have been tabulated the Selection Committee shall having regard to the need for securing due representation of the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories in accordance with Rule 6, call for interview such number of candidates as on the result of the written examination, have come up to the standard fixed by the Committee in this respect. The marks awarded to each candidate in the interview shall be added to the marks obtained by him in the written test.

(4)

The Selection Committee shall prepare a list of candidates in order of merit as disclosed by the aggregate of marks obtained by them in the written test and interview. If two or more candidates obtain equal marks, the candidates obtaining higher marks in the written test shall be placed higher in the list. The number of the names in the list shall be larger but not larger by more than 25 per cent of the number of vacancies.

Note.-The syllabus and the procedure for the competitive examination are given in Appendix 'A'.

17.

Recruitment by promotion to the posts of Stenographer (Selection Grade), Senior Accounts Clerks, Head Clerks and Accountants.

(1)

For the purpose of recruitment by the promotion a Selection Committee shall be constituted as follows :

(a)

For the post of Stenographer (Selection Grade) :

(i)

Food Commissioner or an Additional Food Commissioner nominated by him, and

(ii)

Two other officers not below the rank of Deputy Commissioner, Food and Civil Supplies, nominated by the Food Commissioner.

(b)

For other posts :

(i)

Divisional Commissioner or an officer not below the rank of District Magistrate nominated by him.

(ii)

Regional Food Controller and in his absence Deputy Regional Food Controller of the concerned region, and
(iii)

District Supply Officer at the headquarters of the concerned division.

(2)

The Food Commissioner shall prepare a list of eligible candidates arranged in order of seniority and place it before the Selection Committee along with their character-rolls and such other records pertaining to them, as may be considered proper.

(3)

The Selection Committee shall consider the cases of the candidates on the basis of the records referred to in sub-rule (2) and if it considers it necessary, it may also interview any or all the candidates.

(4)

The Selection Committee shall prepare a list of selected candidates arranged in order of seniority and forward the same to the appointing authority.

Part VI ? Appointment, Probation, Confirmation and Seniority

18.

Appointment.

(1)

On the occurrence of substantive vacancies, the appointing authority shall make appointments by taking candidates in the order in which they stand in the lists prepared under Rule 15, 16 or 17, as the case may be.

(2)

The appointing authority may make appointments in temporary and officiating vacancies also from the lists referred to in sub-rule (1). If no candidates borne on these lists is available, may make appointments in such vacancies from the persons eligible for appointment under these rules :

Provided that such ad hoc appointments to the post of Clerk-cum-Typist shall not be made for a period of more than six months or till the next selection, whichever is earlier and to other posts it shall not be made for a period exceeding one year or till the next selection whichever is earlier.

19.

Probation.

(1)

A person on appointment to a post in the service in or against a substantive vacancy shall be placed on probation for a period of two years.

(2)

The appointing authority may for reasons to be recorded extend the period of probation in individual cases specifying the exact date up to which the extension is granted :

Provided that save in exceptional circumstances the period of probation shall not be extended beyond one year and in no case beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or extended period of probation, that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction, he may be reverted to his substantive post, if any, or if he does not hold a lien on any post, his service may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3), shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service rendered in an officiating or temporary capacity in a post included in the cadre of any other equivalent or higher post to be taken into account for the purpose of computing the period of probation.

20.

Confirmation.

- A probationer shall be confirmed in his appointment at the end of period of probation or extended period of probation if

his work and conduct have been found to be satisfactory, his integrity is certified and if the appointing authority is satisfied that he is otherwise fit for confirmation.

21.

Seniority.

(1)

A seniority list in respect of each category of posts in the service shall be maintained separately for each Division and a combined seniority list for the entire State shall also be maintained for the posts of Stenographers.

(2)

Seniority in any category of posts in the service shall be determined from the date of substantive appointment and if two or more persons are appointed together from the order in which their names are arranged in the appointment order :

Provided that-

(i)

the inter se seniority of persons directly appointed to the service shall be the same as determined at the time of selection, and

(ii)

the inter se seniority of persons appointed to the service by promotion shall be the same as it was in the substantive post held by them at the time of promotion.

Note.-A directly recruited candidate may lose his seniority if he fails to join without valid reasons when a vacancy is offered to him. Whether the reasons in any particular case are valid or not shall be decided by the District Magistrate.

Part VII ? Pay, etc.

22.

[Scales of pay]

[For Latest Pay Scale, please see Current G.O.]

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(1)

The scales of pay admissible to persons appointed to the various categories of posts in the service whether in a substantive or officiating capacity or as a temporary measure shall be such as may be determined by the Government from time to time.

(2)

The scales of pay in force at the time of commencement of these rules are as follows :

Post

From 1st August, 1972 and from October, 1975

in the case of Stenographer (Selection Grade)

1

2

(1)

Head Clerks

}

Rs. 250-7-285-E.B.-9-375--E.B.-10-425.

(2)

Accountant

(3)

Senior Accounts Clerk

Rs. 230-6-290-E.B.-9-335-E.B.-10-385.

(4)

Clerk-cum-Typist

Rs. 200-5-250-E.B.-6-280-E.B.-8-320.

(5)

Stenographer (Ordinary Grade)

Rs. 250-7-285-E.B.-9-375-E.B.-10-425.

(6)

Stenographer (Selection Grade)

Rs. 300-8-340-E.B.-10-440-E.B.-12-500.

23.

Pay during probation.

(1)

Notwithstanding any provisions in the Fundamental Rules to the contrary, a person on probation, if he is not already in permanent Government service, shall be allowed to draw his first increment in the time scale when he has completed one year of satisfactory service and second increment after two years' service when he has completed the probationary period and is also confirmed :

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during probation of a person who was already holding a post under the Government, shall be regulated by the relevant Fundamental Rules :

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count (for increment) unless the appointing authority directs otherwise.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, applicable to Government servants generally serving in connection with the affairs of the State.

24.

Criteria for crossing efficiency bar.

(1)

No Clerk-cum-Typist shall be allowed to cross-

(i)

the first efficiency bar unless his work and conduct are found to be satisfactory, he possesses a minimum speed of 25 words per minute in Hindi Typewriting and unless his integrity is certified, and

(ii)

the second efficiency bar unless he is found to have acquired good knowledge of rules and regulations of the Food and Civil Supplies Department, and has worked steadily and his work and conduct are found to be satisfactory and unless his integrity is certified.

(2)

No senior Accounts Clerk/Head Clerk/Accountant shall be allowed to cross-

(i)

the first efficiency bar unless his work and conduct are found to be satisfactory and unless his integrity is certified, and

(ii)

the second efficiency bar unless his work and conduct are found to be satisfactory, he has acquired adequate knowledge of the rules and procedure having a bearing on his duties and unless his integrity is certified.

(3)

No Stenographer shall be allowed to cross--

(i)

the first efficiency bar unless his work and conduct are found to be satisfactory and unless his integrity is certified, and

(ii)

the second efficiency bar unless work and conduct are found to be satisfactory and he can be depended upon for keeping the official secrets and unless his integrity is certified.

Part VIII ? Other Provisions

25.

Canvassing.

- No recommendations, either written or oral other than those required under these rules applicable to the post or service, will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature by other means will disqualify him for appointment.

26.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or by special orders, persons appointed to the service shall be governed by rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

27.

Relaxations from conditions of service.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of persons appointed to the service causes undue hardship in any particular case, it may notwithstanding anything contained in the rules applicable to the case, by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

28.

Saving.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the orders issued from time to time in this regard.

Appendix 'A'

(Part V, Rule 5)

1. The subjects of the competitive test and the maximum marks of each subject for the post of stenographer shall be as follows :

Written papers

Maximum Marks

1

2

1.

Shorthand (Hindi)

100

2.

Type writing (Hindi)

50

3.

Hindi Composition

50

Oral test

(a) Personality

25

(b) General knowledge and suitability

25

250

2. The test in Shorthand will consist of a passage in Hindi for five minute at the speed of 80 words per minute. One hour will be allowed for transcribing and typing the Shorthand record of dictation. The passage will be selected with a view to testing the candidate not only in their speed in Shorthand but also in their knowledge of good and idiomatic Hindi. No candidate will be considered to have qualified for employment whose percentage of errors exceeds 5 in the test.

3. The test in Hindi composition will be of two hours duration. Candidates will be required to write a letter or an essay on a subject.

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